



Land Registration Act 1988

1988 CHAPTER 3

An Act to amend section 112 of the Land Registration Act 1925,
and for connected purposes. [15th March 1988]

BE IT ENACTED by the Queen's Most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) For sections 112 to 112C of the Land Registration Act 1925 (which give restricted rights of inspection etc.) there shall be substituted— Open register.
1925 c. 21.

“112.—(1) Any person may, subject to such conditions as may be prescribed and on payment of any fee payable, inspect and make copies of and extracts from—

- (a) entries on the register, and
- (b) documents referred to in the register which are in the custody of the registrar (other than leases or charges or copies of leases or charges).

(2) Documents in the custody of the registrar relating to any land or charge but not falling within subsection (1)(b) of this section may be inspected, and copies of and extracts from them may be made—

- (a) as of right, in such cases as may be prescribed, and
- (b) at the discretion of the registrar, in any other case,

but subject in all cases to such conditions as may be prescribed and on payment of any fee payable.

(3) References in this section to documents include references to things kept otherwise than in documentary form.”

(2) The following enactments shall cease to have effect—

- (a) section 59(3) of the Land Registration Act 1925 (inspection of register and lodging of cautions by judgment creditor);
- (b) section 61(10) of that Act (inspection of register and lodging of cautions on insolvency of registered proprietor);

- (c) in section 144(1)(ix) of that Act (power to make rules as to conduct of official searches against cautions etc.), the words from “against cautions” to the end;
- 1985 c. 68. (d) section 165(5) of the Housing Act 1985 (inspection of register, and obtaining office copies, in connection with the right to buy);
- 1985 c. 69. (e) section 52(4) of the Housing Associations Act 1985 (inspection of register etc. for information relevant to reduction, suspension or reclaim of housing association grant);
- 1986 c. 32. (f) section 33 of the Drug Trafficking Offences Act 1986 (inspection of register etc. for the purpose of drug trafficking investigation);
- 1987 c. 46. (g) paragraph 2 of Schedule 1 to the Diplomatic and Consular Premises Act 1987 (inspection of register in connection with exercise of power to vest former diplomatic or consular premises in the Secretary of State).

Repeals. 2. The enactments specified in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

**Short title,
commencement
and extent.**

- 3.—(1) This Act may be cited as the Land Registration Act 1988.
- (2) This Act shall come into force on such day as the Lord Chancellor may by order made by statutory instrument appoint.
- 1958 c. 51. (3) This Act, except the repeal in Schedule 2 to the Public Records Act 1958, does not extend to Scotland or Northern Ireland.

SCHEDULE

REPEALS

Section 2.

Chapter	Short title	Extent of repeal
15 & 16 Geo. 5 c. 21.	The Land Registration Act 1925.	Section 59(3). Section 61(10). In section 110(1), the words "with an authority to inspect the register and". In section 113, the words "and plans". In section 113A(2), the words "and plans". In section 144(1)(ix), the words from "against cautions" to the end.
1958 c. 51.	The Public Records Act 1958.	In Schedule 2, the entry relating to section 112 of the Land Registration Act 1925.
1977 c. 38.	The Administration of Justice Act 1977.	Section 25.
1981 c. 24.	The Matrimonial Homes and Property Act 1981.	Section 4(4).
1982 c. 53.	The Administration of Justice Act 1982.	In Schedule 5, paragraph (b).
1983 c. 19.	The Matrimonial Homes Act 1983.	In Schedule 2, in the entry relating to the Land Registration Act 1925, the words "and 112B" and the words "in each case".
1985 c. 65.	The Insolvency Act 1985.	Section 215. In Schedule 8, paragraph 5(3)(d), (5) and (6).
1985 c. 68.	The Housing Act 1985.	Section 165(5). Section 168(4).
1985 c. 69.	The Housing Associations Act 1985.	Section 52(4).
1986 c. 32.	The Drug Trafficking Offences Act 1986.	Section 33.
1986 c. 45.	The Insolvency Act 1986.	In Schedule 14, the entry relating to section 112AA(3)(a) of the Land Registration Act 1925.
1987 c. 31.	The Landlord and Tenant Act 1987.	Section 51.